

which followed these enactments, cases in this Court in which the "under color" provisions were invoked uniformly involved action taken either in strict pursuance of some specific command of state law¹⁹ or within the scope of executive discretion in the administration of state laws.²⁰

tions not relevant here. Cong. Globe, 42d Cong., 1st Sess., App. 68. See also *id.*, at 461. The 1866 provision had been re-enacted, substantially and in form, by the seventeenth and eighteenth sections of the Act of May 31, 1870, 16 Stat. 140, 144, and the 1874 revision of the provision was in turn patterned on the present § 1979. See *Screws v. United States*, 325 U. S. 91, 99-100. The sections have consistently been read as coextensive in their reach of acts "under color" of state authority. *Picking v. Pennsylvania R. Co.*, 151 F. 2d 240, 248 (C. A. 3d Cir.); *Burt v. City of New York*, 156 F. 2d 791, 792 (C. A. 2d Cir.); *McShane v. Moldovan*, 172 F. 2d 1016, 1020 (C. A. 6th Cir.); *Geach v. Moynahan*, 207 F. 2d 714, 717 (C. A. 7th Cir.).

As enacted in 1871, the provision which is now § 1979 reached acts taken "under color of any law, statute, ordinance, regulation, custom, or usage of any State . . ." 17 Stat. 13. (Emphasis added.) In the Revised Statutes of 1874 and 1878 "law" was omitted from the section, although "law" was retained in the parallel criminal provision, R. S. § 5510, as amended, 18 U. S. C. § 242, and in the jurisdictional provisions, R. S. §§ 563 (12) and 629 (16). The deletion in § 1979 appears in the Reviser's Draft (1872) without explanation. 1 Revision of U. S. Statutes, Draft (1872) 947. No alteration in statutory coverage is permissibly to be based upon the change.

The jurisdictional provisions may now be found in 28 U. S. C. § 1343.

¹⁹ *Carter v. Greenhow*, 114 U. S. 317; *Bowman v. Chicago & N. W. Ry. Co.*, 115 U. S. 611; *Giles v. Harris*, 189 U. S. 475; *Devine v. Los Angeles*, 202 U. S. 313; *Myers v. Anderson*, 238 U. S. 368; *Nixon v. Herndon*, 273 U. S. 536; *Lane v. Wilson*, 307 U. S. 268; *Douglas v. Jeannette*, 319 U. S. 157. One case not involving a state constitution, statute, or ordinance was an instance of state judicial action. *Green v. Elbert*, 137 U. S. 615; and see *Anglo-American Prov. Co. v. Davis Prov. Co.*, No. 2, 191 U. S. 376.

²⁰ *Holt v. Indiana Mfg. Co.*, 176 U. S. 68; *Moyer v. Peabody*, 212 U. S. 78; *Hague v. C. I. O.*, 307 U. S. 496; cf. *Smith v. Allwright*, 321 U. S. 649.